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February 13, 2025

By: Dossett

An Act relating to alcoholic beverage license fees; amending 37A O.S. 2021, Section 2-101, as amended by Section 3, Chapter 338, O.S.L. 2023 (37A O.S. Supp. 2024, Section 2-101), which relates to annual license fees; establishing certain license fee; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 37A O.S. 2021, Section 2-101, as amended by Section 3, Chapter 338, O.S.L. 2023 (37A O.S. Supp. 2024, Section 2-101), is amended to read as follows:

Section 2-101. A. Except as otherwise provided in this section, the licenses issued by the ~~ABLE~~ Alcoholic Beverage Laws Enforcement (ABLE) Commission, and the annual fees therefor, shall be as follows:

- | | |
|------------------------|------------|
| 1. Brewer License..... | \$1,250.00 |
|------------------------|------------|

- | | |
|------------------------------|----------|
| 2. Small Brewer License..... | \$125.00 |
|------------------------------|----------|

- ### 3. Distiller License:

- a. produced two thousand five hundred cases or less in
the last calendar year.....\$320.00

- b. produced more than two thousand five hundred cases in
the last calendar year\$3,125.00

1	4.	Winemaker License.....	\$625.00
2	5.	Small Farm Winery License.....	\$75.00
3	6.	Rectifier License.....	\$3,125.00
4	7.	Wine and Spirits Wholesaler License.....	\$3,000.00
5	8.	Beer Distributor License.....	\$750.00
6	9.	The following retail spirits license fees	
7		shall be determined by the latest Federal	
8		Decennial Census:	
9	a.	Retail Spirits License for cities and	
10		towns from 200 to 2,500 population.....	\$305.00
11	b.	Retail Spirits License for cities and	
12		towns from 2,501 to 5,000 population.....	\$605.00
13	c.	Retail Spirits License for cities and	
14		towns over 5,000 population.....	\$905.00
15	10.	Retail Wine License.....	\$1,000.00
16	11.	Retail Beer License.....	\$500.00
17	12.	Mixed Beverage License.....	\$1,005.00
18			(initial license)
19			\$905.00
20			(renewal)
21	13.	Mixed Beverage/Caterer Combination License.....	\$1,250.00
22	14.	On-Premises Beer and Wine License.....	\$500.00
23			(initial license)
24			\$450.00

1		(renewal)	
2	15.	Bottle Club License.....	\$1,000.00
3		(initial license)	
4		\$900.00	
5		(renewal)	
6	16.	Caterer License.....	\$1,005.00
7		(initial license)	
8		\$905.00	
9		(renewal)	
10	17.	Annual Special Event License.....	\$55.00
11	18.	Quarterly Special Event License.....	\$55.00
12	19.	Hotel Beverage License.....	\$1,005.00
13		(initial license)	
14		\$905.00	
15		(renewal)	
16	20.	Airline/Railroad/Commercial Passenger Vessel Beverage	
17		License.....	\$1,005.00
18		(initial license)	
19		\$905.00	
20		(renewal)	
21	21.	Agent License.....	\$55.00
22	22.	Employee License.....	\$30.00
23	23.	Industrial License.....	\$23.00
24	24.	Carrier License.....	\$23.00

1	25.	Private Carrier License.....	\$23.00
2	26.	Bonded Warehouse License.....	\$190.00
3	27.	Storage License.....	\$23.00
4	28.	Nonresident Seller License	\$750.00
5	29.	Manufacturer License:	
6	a.	50 cases or less sold in Oklahoma in	
7		last calendar year.....	\$50.00
8	b.	51 to 500 cases sold in Oklahoma in	
9		last calendar year.....	\$75.00
10	c.	501 cases or more sold in Oklahoma in	
11		last calendar year.....	\$150.00
12	30.	Manufacturer's Agent License.....	\$55.00
13	31.	Sacramental Wine Supplier License.....	\$100.00
14	32.	Charitable Auction License.....	\$1.00
15	33.	Charitable Alcoholic Beverage License.....	\$55.00
16	34.	Winemaker Self-Distribution License:	
17	a.	produced ten thousand (10,000) gallons	
18		or less in last calendar year.....	\$350.00
19	b.	produced more than ten thousand	
20		(10,000) gallons but no more than	
21		fifteen thousand (15,000) gallons in	
22		last calendar year.....	\$750.00
23	35.	Annual Public Event License.....	\$1,005.00
24	36.	One-Time Public Event License.....	\$255.00

37. Small Brewer Self-Distribution License:

a. produced fifteen thousand (15,000)

barrels or less in last calendar year..... \$350.00

b. produced more than fifteen thousand

(15,000) barrels in last calendar year..... \$750.00

38. Brewpub License..... \$1,005.00

39. Brewpub Self-Distribution License..... \$750.00

40. Complimentary Beverage License..... \$75.00

41. Satellite Tasting Room License..... \$100.00

B. 1. There shall be added to the initial or renewal fees for a mixed beverage license an administrative fee, which shall not be deemed to be a license fee, in the amount of Five Hundred Dollars (\$500.00), which shall be paid at the same time and in the same manner as the license fees prescribed by paragraph 12 of subsection A of this section; provided, this fee shall not be assessed against service organizations or fraternal beneficiary societies which are exempt under Section 501(c)(19), (8) or (10) of the Internal Revenue Code.

2. There shall be added to the fee for a mixed beverage/caterer combination license an administrative fee, which shall not be deemed to be a license fee, in the amount of Two Hundred Fifty Dollars (\$250.00), which shall be paid at the same time and in the same manner as the license fee prescribed by paragraph 13 of subsection A of this section.

1 C. Notwithstanding the provisions of subsection A of this
2 section:

3 1. The license fee for a mixed beverage or bottle club license
4 for those service organizations or fraternal beneficiary societies
5 which are exempt under Section 501(c)(19), (8) or (10) of the
6 Internal Revenue Code shall be Five Hundred Dollars (\$500.00) per
7 year; and

8 2. The renewal fee for an airline/railroad/commercial passenger
9 vessel beverage license held by a railroad described in 49 U.S.C.,
10 Section 24301, shall be One Hundred Dollars (\$100.00).

11 D. An applicant may apply for and receive both an on-premises
12 beer and wine license and a caterer license.

13 E. All licenses, except as otherwise provided, shall be valid
14 for one (1) year from date of issuance unless revoked or
15 surrendered. Provided, all employee licenses shall be valid for two
16 (2) years.

17 F. The holder of a license, issued by the ABLE Commission, for
18 a bottle club located in a county of this state where the sale of
19 alcoholic beverages by the individual drink for on-premises
20 consumption has been authorized, may exchange the bottle club
21 license for a mixed beverage license or an on-premises beer and wine
22 license and operate the licensed premises as a mixed beverage
23 establishment or an on-premises beer and wine establishment subject
24 to the provisions of the Oklahoma Alcoholic Beverage Control Act.

1 There shall be no additional fee for such exchange and the mixed
2 beverage license or on-premises beer and wine license issued shall
3 expire one (1) year from the date of issuance of the original bottle
4 club license.

5 G. In addition to the applicable licensing fee, the following
6 surcharge shall be assessed annually on the following licenses:

7 1. Nonresident Seller License..... \$2,500.00

8 2. Manufacturer License:

9 a. 50 cases or less sold in Oklahoma in
10 last calendar year..... \$100.00

11 b. 51 to 500 cases sold in Oklahoma in
12 last calendar year..... \$225.00

13 c. 501 cases or more sold in Oklahoma in
14 last calendar year..... \$450.00

15 3. Wine and Spirits Wholesaler License..... \$2,500.00

16 4. Beer Distributor..... \$1,000.00

17 5. Retail Spirits License for cities and towns
18 over 5,000 population..... \$250.00

19 6. Retail Spirits License for cities and towns
20 from 2,501 to 5,000 population..... \$200.00

21 7. Retail Spirits License for cities and towns
22 from 200 to 2,500 population..... \$150.00

23 8. Retail Wine License..... \$250.00

24 9. Retail Beer License..... \$250.00

10. Mixed Beverage License..... \$25.00
11. Mixed Beverage/Caterer Combination License..... \$25.00
12. Caterer License..... \$25.00
13. On-Premises Beer and Wine License..... \$25.00
14. Annual Public Event License..... \$25.00
15. Small Farm Winery License..... \$25.00
16. Small Brewer License..... \$35.00
17. Complimentary Beverage License..... \$25.00

The surcharge shall be paid concurrent with the licensee's annual licensing fee and, in addition to Five Dollars (\$5.00) of the employee license fee, shall be deposited in the Alcoholic Beverage Governance Revolving Fund established pursuant to Section 5-128 of this title.

H. Any license issued by the ABLE Commission under this title may be relied upon by other licensees as a valid license, and no other licensee shall have any obligation to independently determine the validity of such license or be held liable solely as a consequence of another licensee's failure to maintain a valid license.

SECTION 2. This act shall become effective November 1, 2025.

COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
February 13, 2025 - DO PASS